

Fletcher v. Experian Information Solutions, Inc. — No. 25-20086

Reply Brief · Fifth Circuit Court of Appeals · (law firm's name intentionally omitted)

Even experienced litigators can mischaracterize cases, quote language that does not appear in the opinion, or cite authorities for propositions they do not support. These errors can trigger sanctions—and they undermine credibility with the court and opposing counsel. RealityCheck verifies every citation in a brief, identifying fabricated quotations, misstated holdings, and incorrect legal standards before filing.

RealityCheck performs **authority verification**—confirming that each cited authority actually supports the legal proposition for which it is offered. Traditional cite-checking verifies format and existence. RealityCheck verifies substance.

■ CRITICAL: DO NOT FILE

16 of 21 citation uses contain errors, including 6 fabricated quotations, 10 misstated holdings, 1 misidentified case, 2 wrong legal standards, and 1 material fact error. This brief requires comprehensive re-research before submission.

WHAT HAPPENED NEXT

This brief was filed without citation verification.

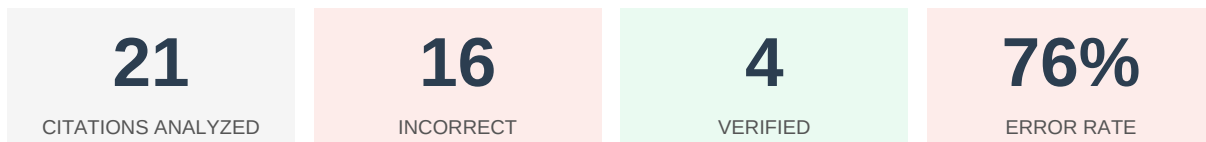
The Fifth Circuit issued an order to show cause, identifying 16 fabricated quotations and 5 additional serious misrepresentations of law or fact.

In a February 2026 opinion, Chief Judge Elrod found that counsel had “used artificial generative intelligence to draft a substantial portion—if not all—of her reply brief and failed to check the brief for accuracy.” The court also found that counsel had “misled, evaded, and violated her duties as an officer of this court.”

Counsel had been previously sanctioned for similar conduct in a separate federal case. She was ordered to pay \$2,500 in sanctions.

The Fifth Circuit identified 16 fabricated quotations and 5 other misrepresentations of law or fact. RealityCheck independently flagged the same issues—and seven more the court did not address.

RealityCheck’s analysis of *Fletcher v. Experian Information Solutions, Inc.*, No. 25-20086 (5th Cir. Feb. 2026), was performed after the brief was filed and before the court issued its opinion. As the Fifth Circuit observed, to ethically use generative AI in the practice of law, a lawyer must “ensure that the legal propositions and authority generated are trustworthy.”



16 Incorrect

1 Caution

4 Verified

CITATION-BY-CITATION ANALYSIS

FABRICATED QUOTE**HOLDING MISSTATED****✗ Fox v. Vice, 563 U.S. 826, 834–36 (2011)**

Fabricated quote and holding misstated — the quoted language does not appear in the opinion, which establishes a “but-for” fee-allocation test, not a frivolousness-at-filing standard.

FABRICATED QUOTE**✗ Cooter & Gell v. Hartmarx Corp., 496 U.S. 384, 393 (1990)**

Fabricated quote — the phrase attributed to Cooter & Gell does not appear in the opinion, even though the underlying legal principle on Rule 11 timing is correctly stated.

FABRICATED QUOTE**HOLDING MISSTATED****✗ Puckett v. United States, 556 U.S. 129, 135 (2009)**

Fabricated quote and holding misstated — the brief claims the case addresses sanctions without notice as structural error, but Puckett holds that breach of a plea agreement is not structural error.

HOLDING MISSTATED**✗ Hensley v. Eckerhart, 461 U.S. 424, 434–35 (1983)**

Holding misstated — the brief frames Hensley as condemning “percentage-based fee allocations divorced from causation,” but the opinion does not use that terminology or frame its holding in those terms.

**WRONG CASE
ENTIRELY****FABRICATED QUOTE****✗ Bryant v. Military Dep’t of Miss., 97 F.3d 678, 682 (5th Cir. 2010)**

Wrong case entirely — the reporter citation resolves to United States v. New York City Transit Authority (2d Cir. 1996), not Bryant v. Military Dep’t of Miss. The quoted text does not appear in the opinion.

FABRICATED QUOTE**✗ In re Case, 937 F.2d 1014, 1023 (5th Cir. 1991)**

Fabricated quote — the phrase “The court must carefully tie the award to the sanctionable conduct” does not appear in the opinion, though the underlying legal principle is correctly stated.

HOLDING MISSTATED**✗ Deepwater Horizon v. Lake Eugenie Land & Dev., Inc., 857 F.3d 246, 250 (5th Cir. 2017)**

Holding misstated — the brief cites Freeh v. Lake Eugenie for a Rule 11 procedural-requirements proposition, but the opinion addresses common law fraud and prudential standing, not Rule 11 or informal notice.

HOLDING MISSTATED

✗ United States v. Miller, 953 F.3d 1095, 1101 (9th Cir. 2020)

Holding misstated — the brief claims the case establishes an evidentiary presumption for fraud documentation, but Miller concerns wire fraud intent and prosecutorial misconduct.

HOLDING MISSTATED

✗ Edwards v. Gen. Motors Corp., 153 F.3d 242, 246 (5th Cir. 1998)

Holding misstated — the brief claims Edwards supports de novo review for sua sponte sanctions, but the court held that § 1927 sanctions are reviewed for abuse of discretion.

MATERIAL FACT ERROR

✗ Morrison v. Walker, 939 F.3d 633, 636–37 (5th Cir. 2019)

Material fact error — the brief implies Morrison supports claims about “Fletcher’s counsel,” but the opinion does not mention Fletcher or their counsel.

HOLDING MISSTATED

**WRONG LEGAL
STANDARD**

✗ Matta v. May, 118 F.3d 410, 413 (5th Cir. 1997)

Holding misstated — the brief claims sanctions were reversed because only one complaint was filed, but the court reversed because the sanctioned party was represented by counsel.

HOLDING MISSTATED

✗ Childs v. State Farm Mut. Auto. Ins. Co., 29 F.3d 1018, 1023 (5th Cir. 1994)

Holding misstated — the brief claims the case requires “articulated findings” for sanctions, but the Fifth Circuit in Childs declined to rule on the sufficiency of findings, as the argument was waived.

HOLDING MISSTATED

✗ Mendez v. County of San Bernardino, 540 F.3d 1109, 1131 (9th Cir. 2008)

Holding misstated — the brief claims the case sets standards for Rule 11 sanctions, but the court’s sanctions discussion was based on inherent powers, not Rule 11.

FABRICATED QUOTE

HOLDING MISSTATED

✗ Thomas v. Capital Sec. Servs., 836 F.2d 866, 873–74 (5th Cir. 1988)

Fabricated quote and holding misstated — the quoted language is not in the opinion, and the court held specific findings are required only when justification is not readily discernible from the record, not in all instances.

INCORRECT

✗ Vaughan v. Lewisville Indep. Sch. Dist., 62 F.4th 199, 207 (5th Cir. 2023)

Citation could not be fully verified — the verification service flagged a potential issue with the citation, but the holding is accurately stated.

**WRONG STATUTORY
STANDARD**

✗ 28 U.S.C. § 1927

Wrong statutory standard — the brief attributes procedural requirements (notice, briefing, evidentiary hearing) to § 1927 itself, but the statute contains no such requirements; it only establishes liability for unreasonably multiplying proceedings.

HOLDING MISSTATED

■ Peterson v. BMI Refractories, 124 F.3d 1386, 1396 (11th Cir. 1997)

Overbroad application — the brief presents a fact-specific conclusion as a general rule; the court declined sanctions for a single motion under the specific circumstances, not as a categorical exclusion under § 1927.

✓ CITATION VERIFIED

✓ 28 U.S.C. § 1927

Cited four times in the brief. Each use verified as correct.

Two-Layer Verification Process

RealityCheck combines **deterministic citation validation** with **AI-assisted authority analysis**. No AI is involved in verifying whether a case or statute exists—that's deterministic. AI models enter only when evaluating whether quoted language appears in the opinion and whether the authority supports the legal proposition for which it is cited.

LAYER 1: DETERMINISTIC CITATION VALIDATION

01 Extract Citation Parsing

RealityCheck identifies every authority cited in the brief — cases, statutes, regulations, secondary sources — and extracts the surrounding context: the proposition asserted, any quoted language, and the parenthetical or textual description of the holding.

- Handles Bluebook, ALWD, and non-standard formats; captures pinpoint cites and signals
- Maps each citation to its brief location for precise reporting

02 Verify Authority Existence — Code-Based, No AI

Citations to cases and federal statutes are verified through code-based lookups against authoritative legal databases—no AI involved. Each citation is cross-checked at the reporter volume, page number, and court level. Case names, years, and court identifiers are cross-referenced to catch phantom citations, transposed digits, and misidentified courts.

- Flags phantom or misidentified authorities, wrong reporter volumes, and incorrect court identifiers
- Detects case name mismatches and verifies statutory sections against current codification

LAYER 2: AI-ASSISTED AUTHORITY ANALYSIS

03 Evaluate Authority Accuracy

AI models evaluate whether quoted language appears in the opinion and whether the authority supports the legal proposition for which it is cited, helping identify fabricated quotations, misstated holdings, and unsupported propositions.

- Detects fabricated quotations—language attributed to an opinion that does not appear in the opinion text
- Identifies misstated holdings, unsupported propositions, and incorrect legal standards

04 Report Actionable Output

Every citation receives a verdict — Verified, Caution, or Incorrect — with a plain-language explanation and specific tags categorizing the error type. Subsequent treatment data (e.g., whether an authority has been distinguished or criticized) is surfaced where relevant.

- Issue tags: Fabricated Quote, Holding Misstated, Case Name Error, Wrong Standard, and more
- Treatment signals from subsequent citing authorities

BriefCatch is also making RealityCheck available to federal and state courts. “Once courts are running briefs through RealityCheck after filing, the calculus changes for every litigator. The question isn’t whether to verify your citations. It’s whether you want the court to find the errors before you do.”

RealityCheck. Verify every citation, holding, and quotation before the court does.

RealityCheck is available as part of the BriefCatch Next platform.